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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

MINISTRY OF DEFENCE
(Defence Division)

NOTIFICATION

Rawalpindi, the 7th January, 2015

S. R. O. 45 (I)/2015.—WHEREAS, it appears to the Federal Government that it is necessary to impose restrictions upon the use and enjoyment of land in the vicinity of works of defence specified in the Schedule below and situated in the Division and District mentioned in the said Schedule.

1. NOW, THEREFORE, in exercise of the powers conferred by section 3 of the Works of Defence Act 1903 (VII of 1903), read with section 7 thereof, the Federal Government is pleased to declare that the following restrictions shall attach to the land situated in the vicinity of the works of defence mentioned in the said Schedule, namely:—

- (a) **Within an outer boundary, which may extend to a distance of twelve hundred meters from the crest of the outer parapet of the work:—**

- (i) no variation shall be made in the ground-level and no building, wall, bank or other construction above the ground

(213)

Price : Rs. 3.00

shall be maintained, erected, added to or altered otherwise than with the written approval of the Director-General, Strategic Plans Division and on such conditions as he may prescribe;

- (ii) no wood, earth, stone, brick, gravel, sand or other material shall be stacked, stored or otherwise accumulated:

Provided that, with the written approval of the Director-General, Strategic Plans Division and on such conditions as he may prescribe, road-ballast, manure and agricultural produce may be exempted from the prohibition:

Provided also that any person having control of the land as owner, lessee or occupier shall be bound forthwith to remove such road-ballast, manure or agricultural produce, without compensation, on the requisition of the Director-General, Strategic Plans Division;

- (iii) no surveying operation shall be conducted otherwise than by or under the personal supervision of a public servant duly authorized in this behalf, in the case of land under the control of military authority, by the Director-General, Strategic Plans Division and, in other cases, by the Collector with the concurrence of the Director-General, Strategic Plans Division; and

- (iv) where any building, wall, bank or other construction above the ground has been permitted under clause (i) of this subparagraph to be maintained, erected, added to or altered, repairs shall not, without the written approval of the Director-General, Strategic Plans Division, be made with materials different in kind from those employed in the original building, wall, bank or other construction;

- (b) **within a second boundary which shall extend to a distance of nine hundred meters from the crest of the outer parapet of the work, the restrictions enumerated in sub-paragraph (a) shall apply with the following additional limitations, namely:—**

- (i) no building wall, bank or other construction of permanent materials above the ground shall be maintained otherwise than with the written approval of the Director-General, Strategic Plans Division and on such conditions as he may prescribe and no such building, wall, bank or other construction shall be erected:

Provided that with the written approval of the Director-General, Strategic Plans Division and on such conditions as he may prescribe, huts, fences or other constructions of wood or

other materials, easily destroyed or removed, may be maintained, erected, added to or altered:

Provided also that any person having control of the land as owner, lessee or occupier shall be bound forthwith to destroy or remove such huts, fences or other constructions, without compensation, upon an order in writing signed by the Director-General, Strategic Plans Division; and

- (ii) live hedges, rows or clumps of trees or orchards shall not be maintained, planted, added to or altered other than with the written approval of the Director-General, Strategic Plans Division and on such conditions as he may prescribe;
- (c) **within a third boundary which may extend to a distance of five hundred meters from the crest of the outer parapet of the work, the restrictions enumerated in sub-paragraphs (a) and (b) shall apply with the additional limitation, namely:—**
 - (i) no building or other construction on the surface and no excavation, building or other construction below the surface, shall be maintained or erected:

Provided that, with the written approval of the Director-General, Strategic Plans Division and on such conditions as he may prescribe, a building or other construction on the surface may be maintained and open railings and dry brush-wood fences shall be exempted from this prohibition;

- (d) no aerial flying and paragliding will be allowed in restricted area; and
- (e) no BTS Tower will be allowed in and around the heights over looking works of defence.

2. The sketch plans of the land may be inspected in the office of the District Coordination Officer and Tehsil Municipal Officer, Chakwal in which the said work is situated.

SCHEDULE

Division	District	Description of works of defence
Rawalpindi	Chakwal	Ammunition Depot, Balkassar

[F. No.2/2/SC/D-28/2014.]

HAZMIR KHAN MANDOKHAIL,
Section Officer.

